

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 23, 2026
8:30 AM/1:30 PM

6. KRISTIN ESTRELLA V. ADOLFO ESTRELLA JR.

26FL0016

On January 30, 2026, Petitioner filed a Request for Order (RFO) seeking spousal support, attorney's fees, an order to sale the family residence and terminate the trust. She filed her Income and Expense Declaration concurrently therewith. All required documents were served on February 3rd.

Respondent filed his Income and Expense Declaration on April 15th. He filed his Responsive Declaration to Request for Order on April 16th. The court finds this to be late filed pursuant to Civil Procedure section 1005(b) which states all opposition papers are to be filed at least nine court days before the hearing date. Section 12c states, "[w]here any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, *excluding the day of the hearing* as provided by Section 12." Cal. Civ. Pro. § 12c. Section 1005(b) in conjunction with Section 12c would have made April 10th the last day for filing the Responsive Declaration to Request for Order therefore the document is late filed and the court has not read or considered it.

Petitioner is requesting guideline spousal support and \$10,000 in need-based attorney's fees. She further requests that the marital residence be listed for sale and the family trust be terminated. She asks that the real property located at 7074 Sinclair Drive in Shingle Springs be returned to her name alone.

Petitioner estimates Respondent's income is over \$300,000 per year. However, according to Respondent's Income and Expense Declaration, his prior employment terminated on April 3, 2026. According to Petitioner's Income and Expense Declaration she too is unemployed. In light of the foregoing, the court is setting spousal support to \$0. Additionally, the request for attorney's fees is denied as the court does not find either a disparity in income or Respondent's ability to pay for the fees of both parties.

The court is reserving jurisdiction over the request to terminate the trust, return the Sinclair Drive home to Petitioner's name alone, and to sale the marital residence. The parties are ordered to ensure that all mortgage payments on the home continue to be made timely.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

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TENTATIVE RULING #6: SPOUSAL SUPPORT IS SET AT \$0. THE REQUEST FOR ATTORNEY'S FEES IS DENIED.

THE COURT IS RESERVING JURISDICTION OVER THE REQUEST TO TERMINATE THE TRUST, RETURN THE SINCLAIR DRIVE HOME TO PETITIONER'S NAME ALONE, AND TO SALE THE MARITAL RESIDENCE. THE PARTIES ARE ORDERED TO ENSURE THAT ALL MORTGAGE PAYMENTS ON THE HOME CONTINUE TO BE MADE TIMELY.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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7. GABRIEL GIAMANCO V. MONIFA GIAMANCO

PFL20210240

On January 27, 2026, Petitioner filed an Order to Show Cause and Affidavit for Contempt (OSC) alleging 15 violations of custody orders. Respondent was personally served on February 24, 2026. Minor's Counsel was not served.

This matter is dropped from calendar due to lack of proper service as Minor's Counsel was not served. All parties to the action are to be served with requests filed with the court.

TENTATIVE RULING #7: THIS MATTER IS DROPPED FROM CALENDAR DUE TO LACK OF PROPER SERVICE AS MINOR'S COUNSEL WAS NOT SERVED. ALL PARTIES TO THE ACTION ARE TO BE SERVED WITH REQUESTS FILED WITH THE COURT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.